

20CMCV00313 20CMCV00313

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-26

Motion: MOTION TO ENFORCE SETTLEMENT AGREEMENT DATE: August 26, 2026 TIME: 8:30 A.M.

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Case Number: 20CMCV00313 Hearing Date: August 26, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

FREIGHT

FINANCE CO., LLC DBA EXPRESS FREIGHT FINANCE, A DELAWARE LIMITED LIABILITY
COMPANY,

Plaintiff,

vs.

GI GROUP LLC, A/AN CA

LIMITED LIABILITY COMPANY; ISRAEL GAMLIEL AND DOES 1 TO 10, INCLUSIVE,

Defendants.

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CASE NO: 20CMCV00313

[TENTATIVE] ORDER RE: MOTION TO ENFORCE SETTLEMENT AGREEMENT

DATE: August 26, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

Freight Finance Co., LLC DBA Express Freight Finance

Responding Party: None

Notice: Improper

Tentative Ruling: Plaintiff's

Motion to Enforce Settlement Agreement is DENIED WITHOUT PREJUDICE.

I.

BACKGROUND

This is an

action seeking to recover a balance due for goods, wares and/or merchandise sold and/or services rendered. Plaintiff Freight Finance Co., LLC dba Express Freight Finance alleges that it entered into a Factoring Agreement with Defendant GI Group, LLC ("GI Group") resulting in a sum of \$25,701.49 owed to Plaintiff by GI Group as of August 31, 2019.

Defendant Israel Gamliel ("Gamliel") is alleged to have executed a Guarantee agreeing and ensuring that GI Group would perform according to the Factoring Agreement.

On December 2, 2020, Plaintiff filed this action against GI Group and Gamliel (collectively, the "Defendants") alleging causes of action for: (1) Open Book Account; (2) Account Stated; (3) Reasonable Value of Goods/Services Received; (4) Agreement; (5) Personal Guarantee; and (6) Unjust Enrichment.

A Notice of Settlement of Entire Case was filed on May 17, 2024.

On July 17, 2026, Plaintiff filed a Motion to Enforce Settlement Agreement.

As of August 24, 2026, no Opposition or Reply have been filed.

II.

ANALYSIS

A.

Legal
Standard

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of

the settlement . . .” (Code Civ. Proc. § 664.6(a).)

B.

Discussion

Plaintiff alleges that the parties entered into a settlement agreement on May 31, 2024 whereby Defendants agreed to pay Plaintiff the sum of \$20,000.00 in exchange for Plaintiff discharging Defendants. (See Mot., p. 3:5-10; Chow Decl., ¶ 2; Exh. A)

Plaintiff

contends payments were supposed to begin on June 1, 2024, but Defendants did not make any payments. (Mot., p. 3:13-14.)

On March 17, 2025, Plaintiff’s counsel sent Defendants’ counsel an email giving Defendants 10 days to make the payment, but Defendants failed to make the payment. (Chow Decl., ¶ 3; Exh. B.) Plaintiff argues Defendants’ current amount due is \$25,701.00.

Upon review of the Agreement

attached as Exhibit A to the Declaration of Plaintiff’s counsel Ron Chow (“Chow”), the Court notes the following issues:

(1)

The

Stipulation re: Judgment Upon Conditional Settlement attached to Chow’s declaration appears to have been signed only by Defendant Gamliel (Chow Decl., Exh. A, p. 3) and Plaintiff (Id., pp. 6, 9). There is no signature by Defendant GI Group.

(2)

The

Settlement Agreement and Mutual Release attached as Exhibit A to the Chow Declaration is only signed by Plaintiff. (Id., p. 10.)

(3)

There

is no Proof of Service of notice of the instant motion. The Stipulation re: Judgment Upon Conditional Settlement states that “[i]f there is an Uncured Default by Defendants, the resulting judgment may be entered ex parte by Plaintiff’s Counsel’s declaration (which includes and accounts for any payments received from Defendants) without any further notice and/or hearings to Defendants, and Defendants hereby waive

all rights to further notice and/or further hearings.” (Id., p. 2:22-25 (emphasis in original).) But, as is noted above, the Stipulation does not appear to have been signed by all parties. In the absence of a fully executed stipulation to waive notice, notice of the instant motion should have been given.

III.

CONCLUSION

For the foregoing reasons, Plaintiff’s Motion to Enforce Settlement Agreement is DENIED WITHOUT PREJUDICE. Plaintiff may re-file its motion, addressing the Court’s concerns noted above.

The matter is ordered dismissed without prejudice with the Court to retain jurisdiction to enforce the terms of the parties’ settlement agreement pursuant to Code of Civil Procedure § 664.6.